



PSS POLICY ON THE PREVENTION OF DISCRIMINATION AND HARASSMENT AT WORK

Created on approved in January 2025 and contextualized in March 2025

I – OBJECTIVE

The objective of this policy is to affirm the commitment of Promoting Skill For Success (PSS) to prevent and stop any situation of discrimination or harassment within the organization. It also aims to establish the principles of intervention that are applied in the organization when a complaint is filed or a situation is reported.

II – SCOPE

This policy applies to all staff of the organization, regardless of contractual status (employees, consultants, volunteers, interns, board member etc.), and at all levels of management.

It applies to behavior in the workplace and in any other place or context in which people may find themselves in the course of their employment, including outside working hours (e.g. business trip, visits, events, etc.).

This policy also covers communications transmitted or received by any means, technological or otherwise, in a work context.

III - DEFINITIONS

Discrimination is unequal treatment based on a prohibited criterion (in particular: age; sex; gender identity; sexual orientation; origin; membership or non-membership of an ethnic group, a nation or a so-called race; pregnancy; state of health; disability; genetic characteristics; political and philosophical opinions; trade union activities and religion).

Harassment can be considered as a specific type of discrimination.

Harassment is characterized by the repeated imposition on a person of words or behavior, the purpose or effect of which is to degrade his or her working conditions in such a way as to infringe his or her rights and dignity, to alter his or her physical or mental health or to compromise his or her professional future.

It can take the form of various behaviors of a verbal, non-verbal or physical nature, and also materialize online.

Sexual harassment is a specific type of harassment. It is characterized by repeated comments or behavior with sexual or sexist connotations that are felt by the person subjected to them as violating his or her dignity because of their degrading or humiliating nature, or create an intimidating, hostile or offensive situation.

While harassment usually involves a pattern of behavior, it can also take the form of a single incident, particularly in the case of sexual harassment.

In the same way, it can take the form of a variety of behaviors of a verbal, non-verbal or physical nature. The following are some examples of behavior that may constitute sexual harassment (non-exhaustive list):

Physical behavior

- Unwelcome physical contact including patting, pinching, stroking, kissing, hugging, fondling, touching etc.

Verbal behavior

- Using work-related threats or rewards to solicit sexual favors.
- Comments about a worker's appearance, age, personal life, etc.
- Sexual comments, stories and jokes.
- Derogatory or humiliating comments about sexual orientation or gender identity.
- Sexist or sexual slurs or insults.
- Repeated and unwanted invitations for dates or physical intimacy.
- Condescending or paternalistic remarks.

Non-verbal behavior

- Sending sexually suggestive communications in any format.
- Sharing or posting inappropriate images or videos in any format.
- Sexual gestures.
- Whistling.
- Staring in a suggestive manner.

Sexual harassment can occur between people, regardless of their sex or gender identity. All individuals can be victims or perpetrators.

IV – POLICY OF THE ORGANIZATION

- PSS does not tolerate nor admit any form of discrimination or harassment.
- PSS recognizes that sexual harassment in particular is the result of a culture of discrimination and unequal power relations. It is a violation of fundamental rights, including the right to equality, and creates hostile workplaces that limit the victim's ability to thrive.

- This policy reflects the principles and practices of PSS and applies them to all behavior in the workplace and in the conduct of its activities.
- The organization has an obligation to take all appropriate measures to prevent and respond to discrimination and harassment at work. All forms and expressions of discrimination and harassment are prohibited within the organization, regardless of national criminal or other provisions in force in the place where the behavior occurs.
- Any member of staff who engages in discriminatory behavior and/or harassment will be subject to proportionate disciplinary sanctions, up to and including immediate dismissal. A staff member's hierarchical superiority and seniority do not confer immunity under any circumstances, and may be considered an aggravating circumstance.
- Any allegation of harassment will be investigated impartially, thoroughly and promptly, and in a manner that is fair to all parties involved. The organization will ensure that the rights of all parties are fully protected and the confidentiality of the case respected.

V - INTERNAL HANDLING OF COMPLAINTS AND REPORTS

a. Preliminary steps

Anyone who believes that they are being subjected to discriminatory or harassing behavior should, if possible, first inform the alleged perpetrator that the behavior is unwanted and that it must stop immediately. However, direct confrontation is not always possible and may be difficult for many reasons (difference in status, fear of reprisals, nature of the behavior in question, or other individual reasons).

If direct confrontation is not possible or if the unwanted behavior continues, the person who believes that he/she has been subjected to discriminatory and/or harassing behavior may speak or write to one of the designated staff members, or to any other person in the organization with whom he/she feels comfortable.

At PSS, these people may include:

- The executive director or the deputy director
- The direct manager
- The country director (if local team (including VSI of local team) is involved)
- The Global Audit committee (if the executive team (Executive director, Finance director, Deputy director, Fundraising director or board member) is involved)

The person who witnesses such a situation is also invited to report it to one of the responsible persons mentioned above (with the agreement of the victim).

The person designated by the complainant should as far as possible:

- support and advise the person in a sensitive and impartial manner
- record the dates, times and facts of the incident(s)
- determine the victim's expectations and respect her/his choice
- discuss and agree on the next steps: whether or not to inform the executive director or the deputy director; the country director must be involved in the discussion and agreement if it involves the local team/VSI, whether to make an informal or formal complaint, with the understanding that choosing to resolve the matter informally does not preclude the victim from making a formal complaint if they are not satisfied with the outcome.
- ensure that the victim is aware that they can make a complaint outside the company, within an appropriate legal framework.

b. Informal complaint mechanism

If the complainant wishes to deal with the matter informally, the designated person should:

- talk to the alleged perpetrator to enable him/her to respond to the complaint
- ensure that the alleged perpetrator understands the allegation
- facilitate discussion between the two parties to reach an informal resolution that is acceptable to the complainant,
- ensure that a confidential record of what happens is kept
- follow up after the conclusion of the mechanism to ensure that the behavior has stopped
- ensure that all of the above steps are carried out promptly and within 7 working days of the complaint being made.

The designated person may also refer the matter to a mediator of their choice within the association if they do not feel able to deal with it personally.

c. Formal complaint mechanism

If the complainant wishes to make a formal complaint or if the informal complaint mechanism has not resulted in a satisfactory outcome for the complainant, the formal complaint mechanism should be used to resolve the matter.

The designated person, who initially received the complaint, will refer the case to the executive director or the deputy director to initiate a formal procedure. The country director must be involved in case of one of the local team/VSI is concerned

The executive director or the deputy director will refer the case to the audit committee of PSS who will deal with it in accordance with this policy.

The persons in charge of the investigation should:

- ensure that the procedure is completed as quickly as possible and in any case within 15 working days of the complaint being made
- interview the victim and the alleged perpetrator separately
- interviewing separately the other persons involved (such as possible witnesses)
- decide whether discrimination or harassment has been established
- draw up a report detailing the investigations, the measures taken, the conclusions and any recommendations

If the facts are established:

- decide on what happens next, in consultation with the victim (e.g. apology, change of working conditions, training for the perpetrator, disciplinary measure, suspension, dismissal, etc.)
- offer the victim psychological support, if necessary, paid for by PSS
- follow up to ensure that the recommendations have been implemented, that the behavior has stopped and that the victim is satisfied with the outcome.

If it is not possible to determine whether discrimination or harassment has taken place, they can nevertheless make recommendations to prevent such situations.

Whatever the outcome, the report and any evidence must be kept for at least two years before being destroyed.

Anyone dealing with a complaint or report of discrimination or harassment has an obligation to:

- preserve the dignity and privacy of the persons concerned, i.e. the person who made the complaint, the person who is the subject of the complaint and the witnesses
- protect the confidentiality of the process, including information relating to the complaint or report
- ensure that all persons involved are treated humanely, fairly and objectively

Any person who breaches this policy may be subject to appropriate disciplinary action as provided in the internal regulations.

Any person who makes false accusations with the intention of causing harm will also be subject to appropriate disciplinary action.

VI – PREVENTION

PSS is committed to take appropriate measures to protect staff against discrimination and harassment through preventive measures, and in particular to:

- Promote a harmonious working environment free of discrimination and harassment, in which all persons are treated with respect through a shared Ethic chart and code of conduct that highlight mission, vision and values of PSS

- Disseminate this policy in such a way as to make it accessible to all its staff and, as far as possible, to all persons connected with the organization, including the beneficiaries of its activities
- Screen candidates during the recruitment process, paying particular attention to sensitivity to PSS's values, including respect for rights and gender equality.
- Make it mandatory to read and agree this policy, as an integral part of the induction process for new staff. The agreement with the present policy is mentioned in the work contract.

Staff responsibilities

It is the responsibility of all staff to behave in a way that maintains a workplace free from discrimination and harassment and react if they witness any situation that doesn't respect the principles and values of PSS.

In particular, staff members must:

- have zero tolerance for discrimination and harassment and treat all people in the workplace with courtesy and respect
- refrain from encouraging other staff or non-staff members to engage in behavior that would violate this policy
- cooperate with investigations, audits and reviews
- report the case if found suspicious
- participate in mandatory training related to gender, sexual harassment and other related topics

Obligations of directors and managers

In addition to their obligations as staff members, directors and managers must:

- demonstrate their commitment to preventing and responding to sexual harassment, educate themselves on the issue, act as role models by maintaining a high standard of personal conduct and being aware of the power their position gives them, and treat all colleagues with courtesy and respect.
- respond promptly to complaints, take them seriously, notify the general director or deputy director, and ensure that the necessary action for which they are responsible is taken in relation to the individual (e.g. support, interim measures, etc.).
- maintain an open dialogue within their team to promote a harmonious working environment and be alert to behavior that may be in breach of this policy.
- ensure that their entire team has read and engaged in the policy on prevention of discrimination and harassment at work.
- participate in mandatory training related to gender, sexual harassment and other related topics

Failure to comply with the discrimination and harassment policy by any member of staff constitutes misconduct which may lead to a sanction.

Signature & Acknowledgment

By signing this document, I confirm that I have read and understood the “Policy on the prevention of discrimination and harassment at work” and agree to comply with its terms.

Last Name:

First Name:

Organization (if applicable):

Date:

Signature: